

24SMCV05144 24SMCV05144

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CASE NAME: Greenfield v. Waste
Management of California Inc., et al.

CASE NO.: 24SMCV05144

MOTION: Motion
to Compel Independent Medical Examination

HEARING DATE: 8/11/2026

Legal
Standard

Except for defense physical examinations in personal injury cases (in which one examination is permitted as a matter of course) and exams arranged by stipulation, a court order is required for a physical or mental examination. Such order may be made only after notice and hearing, and for "good cause shown." (CCP §2032.320(a).) Where the plaintiff's injuries are complex, several exams may be necessary by specialists in different fields. (Shapira v. Superior Court (1990) 224 Cal.App.3d 1249, 1255.) The good cause requirement checks any potential harassment of the plaintiff. (Id.) The motion must specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity, and specialty, if any, of the person conducting the examination. (CCP § 2032.310(b).) The motion must be supported by a meet and confer declaration. (Id.) Further, the party's mental state must be in controversy in the action. (See Acuna v. Regents of University of California (1997) 56 Cal.App.4th 639, 653 [trial courts have the discretion to order a mental

examination where the plaintiff seeks damages for on-going emotional distress].) “[A] party who chooses to allege that he has mental and emotional difficulties can hardly deny his mental state is in controversy.” (Vinson v. Superior Court (1987) 43 Cal.3d 833, 839-842.) Specific tests must be specified to ensure that “the court has considered any objections to the tests and provides the examiner clear parameters for the examination.” (Carpenter v. Superior Court (2006) 141 Cal.App.4th 249, 263 [invalidating order requiring plaintiff to submit to “standardized written psychological tests” to “test emotional and cognitive functioning”].)

If a party stipulates that no claim is being made for mental and emotional distress over and above that usually associated with the physical injuries claimed and that no expert testimony will be presented regarding the mental and emotional distress, then the court shall not order a mental examination of a person unless there is a showing of exceptional circumstances. (CCP § 2032.320(b) –(c).)

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A separate statement is required to compel a “medical examination over objection.” (CRC Rule 3.1345(a)(6).)

Analysis

Defendant Waste Management of California Inc. moves to compel Plaintiff Nicole Greenfield's independent neuropsychological examination. (CCP §§ 2032.310, 2032.320.) Defendant seeks a psychological examination of Plaintiff to be performed by Scott Grover, a Clinical and Forensic Psychologist, at 250 West 1st Street, Suite 317, Claremont, CA 91711, beginning at 10:00 a.m. and ending at 4:00 p.m. day, by no later than September 1, 2026.

Plaintiff's objections are OVERRULED.

Pursuant to the Court's prior discussion on Plaintiff's initial motion to compel a physical examination, the Court is not inclined to compel Plaintiff attend an IME greater than 75-miles from her home or place of business in New York. In this motion, Defendant

relies on the same general evidence that counsel has no experience with qualified experts in New York. Absent a further showing that Defendant cannot locate a competent physician within that geographic range, the Court will adopt that same analysis. Defendant will have to arrange an examination within that geographic area. Additionally, the notice of motion does not specify the specific manner, conditions and scope of the exam. The statute requires specific tests to be noticed to ensure that “the court has considered any objections to the tests and provides the examiner clear parameters for the examination.” (See *Carpenter v. Superior Court* (2006) 141 Cal.App.4th 249, 263 [invalidating order requiring plaintiff to submit to “standardized written psychological tests” to “test emotional and cognitive functioning”].)

Otherwise, the Court concurs with Defendant that Plaintiff’s psychological condition is at issue. In discovery responses, Plaintiff identified a list of injuries she attributed to the subject incident, including emotional injuries such as increased anxiety, depression, and heightened stress levels due to her inability to sit and stand for prolonged periods, resulting in an inability to work. (Moreno Decl., ¶ 2; Ex. 1) Plaintiff claims that the incident resulted in the loss of an early- stage pregnancy which caused emotional trauma. (Moreno Decl., ¶ 2, Ex. 1.) A claim of psychological injury stemming from a lost pregnancy may reasonably cause emotional distress over and above that usually associated with the physical injuries claimed. Plaintiff represents that any damages claim related to emotional distress and/or mental illness falls within a normal pain and suffering case, and that she is willing to stipulate per section 2032.320(b)-(c). However, Plaintiff has not actually stipulated. If Plaintiff wishes to avoid a neuropsychological examination, she must proffer such a stipulation. The Court accordingly encourages the parties to meet and confer regarding setting a neuropsychological evaluation in New York, or whether Plaintiff will enter a stipulation pursuant to section 2032.320.

Accordingly, the motion is DENIED without prejudice.